

Annual Report 2023

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4 1. Certification of the Overall Financial Statement

The Annual Report includes the main accounts in the Finance Act for which the Data Protection Authority (CVR 11 88 37 29) is responsible § 11.11.61. The Data Protection Authority, including the accounting explanations that must be submitted to the National Audit Office in connection with the grant control for 2023. Certification It is hereby stated:

1. that the annual report is accurate, i.e., that the annual report does not contain significant misstatements or omissions, including that the goal setting and goal reporting in the annual report are comprehensive,
2. that the transactions covered by the financial reporting are in accordance with the granted appropriations, laws, and other regulations as well as with the conclusion of agreements and customary practice,
3. that business procedures have been established to ensure an economically appropriate management of the funds and in the operation of the institutions covered by the annual report.

Valby, March 19, 2024

Place, date

Signature

Director Cristina A. Gulisano
Department Head Johan Legarth

5 2. Report

2.1 Presentation of the Organization

The Data Protection Authority is the central governmental authority that supervises any processing covered by the General Data Protection Regulation and the Data Protection Act as well as the Act on the Processing of Personal Data by Law Enforcement Authorities (the Enforcement Act), except for processing carried out for the courts. The Data Protection Authority exercises its functions in full independence but has a budgetary connection to the Ministry of Justice. The annual report is submitted for § 11.11.61. Data Protection Authority (operating grant). The Data Protection Authority consists of a council, the Data Council, and a secretariat. The Minister of Justice appoints the Data Council, which consists of a chairperson and seven other members. The Data Council primarily makes decisions in specific cases of a principled nature. The secretariat, which employed 78 staff as of December 31, 2023, manages the daily operations of the Data Protection Authority under the leadership of a director.

The vision of the Data Protection Authority is to ensure responsible use of citizens' data in a digitalized society. At the same time, the mission of the Data Protection Authority is to be an open authority that works responsively, differentiated, and visibly, and that solves its tasks through practical guidance and information, accessible decisions, and targeted supervision, just as the Data Protection Authority influences national legislation and European cooperation. This is ensured, among other things, through the many telephone and written inquiries about the rules that the Data Protection Authority handles every day, as well as the ongoing meetings with, among others, interest and industry organizations, but also individual data controllers and processors, as needed. Furthermore, this is ensured through the Data Protection Authority's website, where the authority continuously publishes relevant practices and guidance in relation to the General Data Protection Regulation, etc. The Data Protection Authority also continuously participates with contributions, etc., on the rules and the authority's practices at conferences, seminars, and similar events. The Data Protection Authority carries out...

Furthermore, supervision of public authorities and private companies, etc., as well as the handling of complaints. The processing of complaints is also considered part of the Data Protection Authority's supervisory activities, as the authority here takes a specific position and makes decisions regarding data controllers' processing of information about the registered individuals. Furthermore, the Data Protection Authority processes applications for permission for certain processing of personal data, and the authority provides opinions on legislative proposals and drafts of regulations, etc., that are significant for the protection of privacy. The Data Protection Authority also participates in international work, including within the EU. In addition, the Data Protection Authority carries out tasks under certain

special laws and supervises the Danish authorities' processing of information under, among other things, the Schengen cooperation. The Data Protection Authority also supervises the version of the Data Protection Act that was enacted by royal decree for Greenland on December 1, 2016. The Data Protection Authority submits an annual report on its activities to the Parliament. The annual reports can be found on the authority's website (www.datatilsynet.dk).

6 Finally, since December 17, 2021, when Act No. 1436 of June 29, 2021, on the protection of whistleblowers came into force, an external whistleblower scheme has been established at the Data Protection Authority. The scheme has since been renamed the National Whistleblower Scheme to more clearly signal to the outside world that, although the scheme is established within the Data Protection Authority, it can be used to report on all matters covered by the whistleblower law—not just matters concerning data protection. The National Whistleblower Scheme is independent and autonomous, which means that the work with whistleblower reports is kept separate from the Data Protection Authority's other tasks and functions and operates independently of the authority's other activities. The Data Protection Authority has established the website www.whistleblower.dk, where one can read more about the National Whistleblower Scheme.

2.2 Management Report

The Data Protection Authority's field of work is broad and varied, ranging from providing guidance and advice to handling complaints (which is also part of the Data Protection Authority's supervisory activities) and applications for permission to process personal data, as well as the Data Protection Authority also conducting various other types of supervisory activities with authorities and companies each year. The Data Protection Authority also actively participates in, among other things, the joint European cooperation on data protection. Particularly regarding the authority's guidance efforts, it targets very diverse actors: the Parliament, citizens, private organizations and companies, as well as state, regional, and municipal authorities. In this context, the Data Protection Authority works purposefully to ensure that everyone knows and complies with the rules for processing personal data, and that citizens are aware of and can exercise their rights. The year 2023 has generally been characterized by a high level of activity with many important guidance initiatives, larger case complexes, and tasks of an international nature. The Data Protection Authority has handled several larger and quite principled cases regarding the processing of personal data by both public authorities and private companies. Furthermore, the Data Protection Authority has actively participated in, among other things, the European Data Protection Board's handling of several larger cross-border cases in connection with the so-called One Stop Shop mechanism. The Board has, among other things, had to make final binding decisions in a number of larger cross-border cases due to the fact that the affected European supervisory authorities could not agree on the lead supervisory authority's draft decision in each of the cases. International Data Protection Day on January 28, 2023, was marked by the Data Protection Authority with the launch of a nationwide campaign aimed at citizens with a message that we all have secrets, and that data protection rules ensure that others treat our information as secrets. The campaign consisted of printed advertisements and a film about secrets. The campaign was a supplement to the extensive guidance that the authority has provided to companies and authorities since 2018 on how they can best comply with the rules. The citizen-directed campaign, which had a lighter and more personal tone, aimed to explain what data protection rules can do for citizens. In 2023, the Data Protection Authority published 22 national guidelines, website texts, etc. Among other things, the authority published a new guideline on direct marketing and three guidelines in the area of TV surveillance, aimed respectively at private companies, public authorities, and housing associations.

7. The Data Protection Agency has furthermore published a catalog of a wide range of technical and organizational measures that can be read independently of each other and which are intended to contribute to making it easier to find solutions for managing risks. Many of the measures contain concrete examples based on the Data Protection Agency's experiences from supervisory activities, reported breaches of personal data security, the European Data Protection Board's guidelines, and applicable ISO standards. In addition, the agency launched a new guidance universe on GDPR for small businesses in May 2023. The guidance universe has been developed with a focus on clarity and concrete examples, and it is written in an easily understandable manner. The Data Protection Agency

also published a guidance document in October 2023 regarding public authorities' use of artificial intelligence (AI). The guidance includes a review of the requirements that authorities must pay particular attention to before they begin developing AI solutions. At the same time, the Data Protection Agency published a mapping of public authorities' use of AI, which provides the clearest insight to date into public authorities' use of AI. Among other things, the mapping shows that the use of AI is not yet widespread among public authorities. To the extent that AI solutions are used in the public sector, they often involve standard solutions or the same specially developed solution used by several authorities. In 2023, the agency also conducted and launched a project for faster guidance on relevant measures immediately upon reporting breaches of personal data security through the implementation of a new case processing procedure, where targeted guidance is sent to the reporter along with an acknowledgment of the report in connection with the assessment of a reported breach in 11 specifically listed areas. The goal is thus to provide quick and applicable assistance to the organizations facing the breaches. Furthermore, the Data Protection Agency in 2023 contributed to the publication of five common European guidelines, including the European Data Protection Board's guidelines for the issuance of fines. The agency has also played a very active role in connection with the statement on the EU Commission's draft adequacy decision regarding the USA, and the information released by the European Data Protection Board following the publication of the final decision in July 2023. At the Nordic meeting in Helsinki in the autumn of 2022, the Nordic data protection authorities decided, at the initiative of the Danish Data Protection Agency, to establish a working group to address children and online gaming. The Data Protection Agency has actively participated in the working group in 2023, together with the other Nordic supervisory authorities. In 2023, the Data Protection Agency has also continued to follow up on the strategy for a data- and risk-based approach that the agency developed in 2020 with the aim of ensuring that the agency conducts oversight where the risk of violations is greatest. In 2023, work has included improving data quality and data sources, conducting trials with more data-driven targeting for the risk-based supervisory effort, and continuing trials with a new supervisory model and with impact measurement. Additionally, an evaluation of the strategy, which expired in 2023, has been conducted.

8. The Data Protection Agency has in 2023 also developed a new updated strategy for a data- and risk-based approach, which includes 12 new initiatives that will further strengthen the agency's ability to target oversight to the areas where there is the greatest risk to citizens' data. The updated strategy continues to focus on strengthening the agency's data quality, data sources, data usage, and documentation. At the same time, the strategy includes a new strategic challenge regarding progress in supervisory cases. The Data Protection Agency's supervisory activities may lead the agency to assess that criminal law steps should be taken in a case. In this context, it is essential that not only the agency's employees but also employees at the police and prosecution service have a good understanding of the many factors that are important to be aware of from the beginning of such a case until its resolution in the courts. Therefore, in 2023, the Data Protection Agency has continued its collaboration with the National Police and the Director of Public Prosecutions, which was initiated in 2019, aimed at organizing the overall handling of criminal cases regarding violations of data protection rules across authorities. The previous government published back in December 2021 a new national cyber and information security strategy, which contains a wide range of initiatives. One of these initiatives has been the establishment of a data warehouse under the auspices of the Data Protection Agency, which makes knowledge from the many reports of breaches of personal data security available to the public. The Data Protection Agency spent a considerable amount of resources in 2022 to realize this initiative, and the data warehouse was launched in March 2023. The Data Protection Agency has also participated in the follow-up on the strategy in 2023. Finally, in 2023, the Data Protection Agency has continuously focused on the negotiation and adoption of new regulatory requirements in the digital area, particularly the AI regulation. At the same time, the Data Protection Agency has contributed to the national work that the EU's legislative initiatives have prompted. and has, among other things, engaged in dialogue with the Danish Competition and Consumer Authority regarding the national implementation of the DSA and DMA regulations. The Danish Data Protection Agency exercises its functions in full independence according to Section 27, Subsection 1

of the Data Protection Act. On this basis, the Agency has not found that external setting of goals for its activities is compatible with its position. However, in 2023, the Agency has had a particular focus on a number of action points. Overall, the Agency assesses the results of its work on the action points as very satisfactory, as almost all action points are either fully met or partially met. Thus, there is only a single internal action point under development and organization that has not been met. The action points are set by the Director of the Agency in collaboration with the other management. Reference is made to Section 2.4 for a detailed review of the year's performance.

9 Table 1: The Danish Data Protection Agency's financial key figures and main figures Mio. DKK, current prices 2022 2023 2024

Income Statement Ordinary operating income	-58.6	-55.1	-56.6	- Of which recognized grant	-54.4	-50.7
	-51.9	- Of which external income	-4.2	-4.4	-4.6	Ordinary operating expenses
	58.4	59.1	56.4	- Of which salaries	44.0	47.4
	46.6	- Of which depreciation	0.3	0.5	0.5	- Of which other expenses (including rent)
	14.1	11.2	9.3	Result of ordinary operations	-0.2	4.0
	-0.1	Result before financial items	-0.2	4.0	-0.1	
Result for the year	-0.1	4.0	0.0	Balance Sheet Non-current assets	1.4	1.7
	1.7	Current assets	15.4	11.1	11.1	Equity
	-11.3	-7.3	-7.3	Long-term debt	-0.4	-1.5
	-1.5	Short-term debt	-5.1	-4.0	-4.0	Loan limit
	2.4	2.4	2.4	Draw on loan limit	1.1	1.3
	0.9	Financial key figures Utilization rate of loan limit	46.5%	55.9%	38.5%	Profit margin
	0.2%	-7.3%	0.0%	Grant share	92.8%	92.0%
	91.9%					

Personnel Information Number of full-time equivalents 70.5 73.2 71.0 Full-time equivalent cost 0.6 0.6 0.6 Salary cost share 75.2% 86.0% 82.5% Salary ceiling* 47.5 45.7 42.5 Salary expenditure 44.0 47.4 46.6 Source: SKS Note: The Danish Data Protection Agency's grant in 2023 is DKK 50.7 million, in addition to "income" of DKK 4.4 million from the Digitalization Fund (EU's recovery facility). The total result for the year is an overspend of DKK 4.0 million, which the Agency assesses to be less satisfactory. The overspend is due to the declining grant due to expired temporary grants combined with high fixed and variable operating expenses and extraordinarily few departures in 2023 compared to previous years. The Agency's total grant has been reduced by DKK 3.7 million from 2022 to 2023. Furthermore, in 2023 there were several larger expenses that the Agency could not postpone, including the completion of the data warehouse, which was supposed to be fully completed in 2022. Additionally, there was an increase in fixed operating expenses related to energy prices and a larger price adjustment from 2022 to 2023 on both the Agency's lease and expenses for internal state purchases from the State IT, the Building Agency, the Ministry of Finance, and the State Administration, among others.

10 As shown in Table 1, the Danish Data Protection Agency incurred salary expenses, etc., of DKK 47.4 million in 2023, which is DKK 3.4 million more compared to the salary expenditure in 2022, and DKK 1.7 million more than the salary ceiling in 2023 of DKK 45.7 million. The overspend on salaries is partly due to the Agency experiencing fewer departures in 2023 than in previous years, resulting in a higher number of full-time equivalents employed than expected in the first three quarters of the year. Although the Agency had some departures during the last quarter of 2023, it was not possible to stay within the salary ceiling. The overspend of DKK 4.0 million was therefore applied to both salary and operating expenses. Regarding other operations, the Agency incurred expenses of DKK 11.7 million in 2023 for "other expenses (including rent)" and "depreciation," which is DKK 2.7 million lower than in 2022. Box 1: Definition of key figures Key Figures Definition Accounts 2023 Utilization rate of loan limit End balance FF4/loan limit 55.9% Grant share Recognized grant/total ordinary operating income 92.0% Full-time equivalent cost Total personnel expenses/full-time equivalent 647,132 DKK Note: The number of full-time equivalents is extracted from SKS. Box 1 above shows that the Danish Data Protection Agency has utilized its loan limit by 55.9% in 2023. The utilization rate is thus higher than last year, where it was 46.5%, and significantly higher than in previous years, where it was 10.7% in 2021 and 22.8% in 2020. The higher utilization rate is partly due to the Agency also implementing a number of projects and making new investments in 2023, as well as completing projects that were supposed to be finished in 2022, resulting in an addition of assets of approximately DKK 1.1 million in 2023. The Agency's equity amounts to DKK 7.3 million, and the accumulated carried forward surplus amounts to DKK 6.9 million. Despite the negative annual result in 2023, the Agency's accumulated

carried forward surplus remains significantly higher than the initial capital, and the requirements for the Agency's equity are thus met. The Agency's grant share has remained stable in recent years. While the grant share was 92.5% in 2022, it is 92% in 2023, where the last 8% relates to EU income and does not warrant any comments. The Agency's full-time equivalent cost is DKK 647,132 in 2023 compared to DKK 622,384 in 2022, thus showing a minimal increase. The salary cost share (Table 1) is 86.0% in 2023, having increased from 75.2% in 2022. The increase is justified by the fact that the Agency has a larger ratio of consultants compared to employed caseworkers in 2023, and that the employed caseworkers have higher seniority, as fewer are newly graduated in 2023 than in previous years.

11. The Data Protection Agency has, in 2023, used its accumulated equity after agreement with the Ministry of Justice's department, and the accumulated transferred surplus therefore amounted to 6.9 million DKK at the end of 2023, while the balance at the end of 2023 amounted to 12.7 million DKK.

Table 2: The Data Protection Agency's total activity in 2023

(Million DKK) Appropriation Accounts Transferred surplus

end of year Operating Expenses 55.1 59.3 -4.2 Revenues -4.4

-4.5 0.1 2.2.1 Transferred surplus Table 2A

The Data Protection Agency's financial scope Business / Groupings / Expense/revenue/balance
Appropriation

Amount type FL (million DKK) TB (million DKK)

Total appropriation for the financial year (million DKK) Accounts

(million DKK) Transferred surplus/carryovers at year-end

(million DKK) 11883729 Data Protection Agency 50.7 - 50.7

50.7 6.9 10 Operating 50.7 - 50.7 50.7 6.9

Expense account 55.1 - 55.1 59.3 -

Revenue account -4.4 - -4.4 -4.5 -

Balance account - - - 6.9 Note: The Data Protection Agency has in

2023 received 0.1 million DKK in recovery costs,

which is recorded as external revenue, hence there is

a difference of 0.1 million DKK between the revenue account

on FL and the accounts. 2.2.2 Financial results of the year

The Data Protection Agency has only an operational appropriation, and therefore there will be no comments regarding capital and reservation appropriations. The financial result of the year is

an overspend of 4.0 million DKK compared to

the total appropriation for the financial year. The overspend is due to

the declining appropriation due to expired temporary

appropriations combined with high fixed and variable

operating expenses and extraordinarily few departures in

2023 compared to previous years. The Data Protection Agency's appropriation has

been reduced by 4.8 million DKK from 2022 to 2023.

Furthermore, there were several larger expenses in 2023 that

the Data Protection Agency could not postpone, including the

completion of the data warehouse, which was supposed to be fully completed in

2022. Additionally, there is an increase in fixed

operating expenses related to energy prices and a

significant price adjustment from 2022 to 2023 on both

the Data Protection Agency's leases and expenses for internal

government purchases from the State IT, the Building Agency,

the Economic Agency, and the State Administration, among others.

Overall, the financial result of the year is assessed as

less satisfactory.

12. 2.2.3 Professional results of the year

The table below shows the development in the number of cases

opened at the Data Protection Agency from 2019 to 2023.

Table 3A: Development in the number of cases opened at the Data Protection Agency in 2019-2023

	2019	2020	2021	2022	2023
2023 compared to 2022 Administration etc.	591	754	898	815	858
5.3% Consultations on legislative proposals etc.	521	607	730	516	688
33.3% Inquiries	2881	2734	2628	2676	2889
8.0% Complaints	2259	2506	2237	1817	1767
-2.8% Supervision cases	256	403	512	513	504
-1.8% Reports of breaches of personal data security*	7242	8773	8554	8816	9537
8.2% International cases	1156	1244	1000	935	974
4.2% Competence under other legislation	548	482	455	656	708
7.9% Permits etc.	227	265	277	152	137
-9.9% Total	15681	17768	17291	16896	18062

are included in the case group competence under other legislation. As shown in Table 3A, there has been

an increase of 6.9% in the total number of

newly opened cases compared to 2022. The number of

newly opened cases is thus still significantly

higher than in 2018, which was the year when

the General Data Protection Regulation from May 25 began

to apply. A total of 18,062 cases were opened in 2023 compared to 16,896 cases in 2022, making it the highest number of newly opened cases

ever. Cases concerning the Data Protection Agency's own

administration have increased from 815 in 2022 to 858 in

2023, which is an increase of 5.3%. These cases

concern, among other things, requests for access to documents,

personnel matters, and projects. Approximately half of

the cases are requests for access to documents. However, in 2023

there has been a decrease of 10% in the number of requests

for access to documents, which in 2022 amounted to 468 cases compared to 426

cases in 2022. According to

data protection regulations, an opinion must be obtained from

the Data Protection Agency when drafting laws,

regulations, circulars, or similar general

legal provisions that have significance for the protection

of privacy in connection with the processing of

personal data. In 2023, 688 cases were opened in the case group

regarding "consultations on legislative proposals etc.", while in 2022 there were 516 cases of

this type. This represents a significant increase of

33.3% compared to 2022. The Data Protection Agency

decided in 2018 to split the case group

"requests and complaints" into two new separate

case groups, as they involve two very different

case processes. In previous annual reports from 2018 and

back, the two case groups were always combined. In

2023, there was a total of newly opened cases in this

group of 4,656 cases, and in 2022, a total of

4,493 cases were opened, which is a

13. An increase of 3.6%. The figure has remained relatively stable since 2018, but still stands in stark contrast to the years prior to 2018, when the General Data Protection Regulation began to apply on

May 25, 2018, and the total number of cases in 2017 was only 2,213. Regarding the case group "supervisory cases," the Data Protection Authority conducts a number of planned inspections each year, where the authority first determines which themes and which authorities and companies/sectors the inspections should cover. Subsequently, the Data Protection Authority identifies the individual data controllers that will be subject to the inspections. Each year, the authority also takes up additional cases on its own initiative. These are cases where the Data Protection Authority, for example, based on inquiries from citizens, complaints, or journalists, finds that there is reason to take a closer look at the processing of personal data by a specific data controller or data processor. In 2023, the number of cases in this group was 504, which is very close to the number of supervisory cases in 2022, which was 513. This figure has thus remained high and stable over the past three years. After the General Data Protection Regulation began to apply from May 25, 2018, there is, as a general rule, an obligation for all data controllers to report breaches of personal data security to the Data Protection Authority. The report must be made without undue delay and, if possible, no later than 72 hours after the data controller becomes aware of the breach. Therefore, in 2018, the Data Protection Authority established a new case group concerning reports of breaches of personal data security. In 2023, 9,537 cases regarding reports of breaches of personal data security were established, compared to 8,816 cases in 2022, which is an increase of 8.2%. The Data Protection Authority expected that the number of cases concerning reports of breaches of personal data security would stabilize during 2021-2023, which is still not the case. Thus, in 2023, the authority received the highest number of reports to date. Before the regulation came into effect, it was estimated that the Data Protection Authority would receive about 4,000 reports of breaches of personal data security annually. It can now be stated that since 2020, the authority has received more than double the number of reports than expected before the General Data Protection Regulation began to apply. From 2022 to 2023, the number of international cases increased by 4.2% from 935 cases in 2022 to 974 cases in 2023. The case group "international cases" has increased since the General Data Protection Regulation began to apply from May 25, 2018, due in part to the regulation's rules regarding increased and more formalized cooperation between the European data protection authorities, aimed at harmonizing the interpretation of the rules in the EU, and due to a strengthened and increased focus on international cooperation from the Data Protection Authority's side. The Data Protection Authority actively participates in the European Data Protection Board and in all the expert working groups, etc., established under the board, as well as being active in other international forums, including the so-called Berlin Working Group. The number of cases concerning competence under other legislation has increased from 656 cases in 2022 to 708 cases in 2023, which is an increase of 7.9% on top of the very large increase of 44% that occurred in the case group from 2021-2022. In this case group, many cases particularly concern the law on law enforcement, access to archives, TV surveillance, and mass media information databases. Reports of breaches of personal data security under the law on law enforcement are also included in this case group. Furthermore, the case group includes cases with the Faroe Islands and Greenland.

14. Finally, the case group "permissions, etc." has decreased by 9.9% compared to 2022. This is related to the fact that the Data Protection Authority established a number of new standard terms for warning registers, blocking lists, and credit reporting agencies back in 2019, and the following year, the authority began the work of issuing new permissions to existing warning registers, blocking lists, and credit reporting agencies. In 2020, new permissions were issued to all existing credit reporting agencies at that time, whereas a large proportion of the warning registers and blocking lists that, according to the Data Protection Authority's records, existed in 2020 were still under review at the end of the year due to, among other things, a lack of responses from several of the data controllers. The last permissions were finalized in 2021. Furthermore, the case group has generally decreased significantly since 2018, when the regulation began to apply, as after May 25, 2018, there are no longer similar reports made to the Data Protection Authority – and only to a limited extent is it still necessary to obtain permission from the authority. While 29% of all cases in 2017 were permissions, etc., permissions, etc., in 2023 account for less than 1% of all cases.

2.3 Core Tasks and Resources

2.3.1 Tasks and Resources – Schematic Overview

Table 3: Summary of the finances for the Data Protection Authority's tasks

Million DKK, current prices

Revenue-based allocation

Other income

Expenses

Share of the year's surplus

General management and administration -11.0 - 18.8 31.78%

Supervisory functions -25.3 - 24.1 40.79%

Advisory and guidance functions -9.0 - 10.4 17.58%

International work -6.9 - 4.47 8.02%

External reporting channel for Whistleblowers -2.9 - 1.1 1.83%

Total -55.1 - 59.1 -

Note: Revenue-based allocation includes 4.4 million DKK from the EU's Recovery Fund listed here as income. As explained in section 2.2, the result for 2023 is an overspend of 4.0 million DKK. The breakdown of expenses allocated to the authority's tasks is shown in Table 3.

is no longer based on manual task registrations by the employees of the Data Protection Agency over several periods throughout the year. As something new, the calculation of costs is now based on the daily time registration of working hours in the electronic time registration system mTIME, which the Data Protection Agency introduced in 2023. It is entirely new for the employees of the Data Protection Agency to register time across many categories, which is why, in this first year of time registration in mTIME, it is expected that registrations will not be uniform across the organization. Fundamentally, the same tasks belong under the listed core tasks, but with the introduction of mTIME, many more categories have been added, which is why the calculation will differ from previous years' calculations of tasks and resources. Furthermore, the Data Protection Agency will continuously adjust the categories, meaning they will not be entirely the same year after year, as there may be current tasks that are relevant to register time for a shorter period. The costs for the task "general management and administration" mainly include secretarial work, including HR and personnel administration, bookkeeping, accounting and auditing, and communication. This task also includes the Data Protection Agency's internal tasks related to compliance, IT operations and support, development and guidance tasks. The category also includes journaling and operational management. Under the task "supervisory functions," planning, execution, and conclusion of supervisory cases, breaches of personal data security, and assessment of reports of breaches of data security, Data Council cases, hearings on legislative proposals, announcements, etc. are included. The task "advisory and guidance functions" includes both telephone advice and guidance as well as responses to verbal and written inquiries from citizens, businesses, and public authorities, etc. Additionally, it includes the preparation of guidelines and external training and presentations. The Data Protection Agency's participation in international cooperation in the field of data protection became a distinct core task for the Agency back in 2018, and that same year, an international unit was established within the Agency. Under the task "international work," the work in the European Data Protection Board (EDPB), along with its associated sub-working groups and a number of international working groups and other international forums, as well as international inquiries and complaints, is included. Under the task "external reporting channel for whistleblowers," the work with reports to the external whistleblower scheme (now the National Whistleblower Scheme), which was established in the Data Protection Agency in 2021 at the same time as Act No. 1436 of June 29, 2021, on the protection of whistleblowers came into force, is included. This task also includes specific reports, written inquiries, and requests for rights, administration, telephone guidance, and collaboration with other actors.

2.4 Goal Reporting An external determination of goals for the Data Protection Agency's operations is not compatible with the Agency's status as an independent supervisory authority, cf. Section 27(1) of the Data Protection Act. However, as in previous years, the Data Protection Agency has set a number of focus areas with several sub-items for 2023.

2.4.1 The first part of goal reporting: Overview of the year's achievement of results Below, the Data Protection Agency's focus points for 2023 are reviewed in overview form.

The Data Protection Agency has, in assessing whether the focus points have been met, divided the points into three categories: Met, Partially Met, and Not Met. A partial fulfillment is where work has been done on the focus point, but where the work has not yet been fully completed by the end of the year.

Table 4: Achievement of goals for the year Goals and success criteria Achieved results Degree of goal fulfillment in 2023 Supervision and complaint handling, etc. Continued collaboration with the police and prosecution authority on criminal cases in the field of data protection The Data Protection Agency has continued its collaboration in 2023 on criminal cases in the field of data protection with the aim that the cases can be handled effectively across the police, prosecution authority, and the Data Protection Agency. A number of collaboration meetings have been held aimed at coordinating the joint effort. In this context, a memorandum and a form with proposals for fines for cases of register abuse have been prepared, and the Data Protection Agency has organized a workshop on the handling of criminal cases in the field of data protection with participation from prosecutors and investigators from many of the country's police districts and state prosecutors. Met Continued follow-up on the Data Protection Agency's strategy for a data- and risk-based effort In 2023, the Data Protection Agency has continued the follow-up on the strategy for a data- and risk-based effort that the Agency developed in 2020. The purpose of the strategy, which applied until the end of 2023, was among other things to contribute to the Agency performing oversight where the risk of violations is greatest. In 2023, work has included improving data quality and data sources, conducting trials with more data-based goal designation for the risk-based supervisory effort, and continued trials with a new supervisory model and with effect measurement. Additionally, an evaluation of the previous strategy has been conducted. Met Update of the strategy for a data- and risk-based effort The Data Protection Agency has in 2023 developed a new updated strategy for a data- and risk-based effort, which has been published on the Agency's website. The updated strategy contains 12 new initiatives that in various ways will strengthen the Agency's ability to target oversight. Met

17 Table 4: Achievement of Goals for the Year in Areas with the Greatest Risk to Citizens' Data. The updated strategy continues to focus on strengthening the supervisory authority's data quality, data sources, data usage, and documentation. At the same time, the strategy includes a new strategic challenge regarding progress in supervisory activities. Continued Follow-up on National Cyber and Information Security Strategy A national cyber and information security strategy for 2022-2024 was published at the end of 2021, which contains a wide range of initiatives, where the Data Protection Agency is listed as either the initiative owner or contributor. The Data Protection Agency has followed up on the strategy in 2023, including launching a data warehouse in March 2023 with information on breaches of personal data security. Throughout the rest of the year, work has continued on implementing procedures/governance to consolidate the operation of the data warehouse. Efforts are now underway to develop more products in the data warehouse. Furthermore, the Data Protection Agency continues to contribute to several of the strategy's other initiatives. Fulfilled Continued follow-up on two internal reports with proposals for the efficiency of the Data Protection Agency's supervisory and complaint handling. The Data Protection Agency established two internal working groups in 2021 tasked with investigating whether the supervisory and complaint handling processes can be further streamlined. In 2022, the Data Protection Agency particularly followed up on one of the two working groups' reports, which addresses the agency's case management more generally. However, some initiatives from this report initially awaited an upgrade of the Data Protection Agency's ESDH system, and subsequently also a change in the journal period. The latter was implemented in the fall of 2023. Therefore, the focus in 2023 has continued to be on working further with these initiatives, and currently, only a few initiatives from this report remain outstanding. The second of the reports, which particularly deals with the planned supervisory activities, has been followed up by preparing overviews of the different forms of supervision that the Data Protection Agency employs in this regard. Partially fulfilled

18 Table 4: Achievement of Goals for the Year Furthermore, it has been decided that these overviews will form the basis for the establishment of a new internal working group, which – as part of the

follow-up on the Data Protection Agency's updated strategy for a data- and risk-based approach – will be tasked in 2024 with proposing further alignment and efficiency improvements of the Data Protection Agency's supervisory cases, i.e., the control activities that the Data Protection Agency initiates annually. Guidance related to reports of breaches of personal data security The Data Protection Agency has in 2023 implemented and launched a project for faster guidance on relevant measures immediately upon reporting breaches of personal data security through the implementation of a new case process, where targeted guidance is sent to the reporter along with acknowledgment of the report at the same time as the assessment of a reported breach. In 11 specifically enumerated areas, targeted guidance has thus been sent to the reporter immediately after the Data Protection Agency has received the report since October 2023. The goal is to provide quick and practical assistance to the organizations dealing with the breaches. In the longer term, the plan is to expand the number of topics that can be guided on, so that over time, quicker and more concrete guidance can be provided in all relevant cases. Fulfilled Follow-up on negotiations regarding the EU's Digital Package, etc. The Data Protection Agency has continuously focused in 2023 on the negotiation and adoption of new regulatory requirements in the digital area, particularly the AI Regulation. At the same time, the Data Protection Agency has contributed to the national work that the EU's legislative initiatives have prompted, and has, among other things, engaged in dialogue with the Competition and Consumer Authority regarding the national implementation of the DSA and DMA regulations. Fulfilled Advice and Guidance Produce at least 20 guidelines, website texts, etc. The Data Protection Agency has published 22 national guidelines, website texts, etc., in 2023. Furthermore, the Data Protection Agency has contributed to the publication of 5 joint European guidelines. Fulfilled

19 Table 4: Achievement of Goals for the Year Continued

development of checklists and templates for the private sector, which can facilitate the work of achieving and maintaining compliance with data protection regulations, including the development of a concept for SMEs' compliance with data protection regulations. The Data Protection Agency worked in 2022 towards publishing a number of easily accessible checklists that can uniformly and clearly facilitate the work of achieving and maintaining compliance, as well as a concept for SMEs' compliance with data protection regulations, cf. the Business Community's EU and Regulatory Forum GDPR recommendations no. 9 and 10. In this context, a stakeholder meeting was held in the autumn of 2022, where, among others, Dansk Industri, Dansk Erhverv, and SMVdanmark expressed that the Data Protection Agency's concept at that time would be able to adapt more to the needs of businesses than was the case. It was therefore – in mutual understanding with the stakeholders – decided to postpone the launch of the concept until the aforementioned adjustments had been made. This occurred in May 2023, when the Data Protection Agency launched a new guidance universe on GDPR for smaller businesses in a news release on the Agency's website and during a webinar organized by Dansk Erhverv (together with Dansk Industri and SMVdanmark). The guidance universe is developed with a focus on clarity and concrete examples, and it is written in plain Danish.

Fulfilled Guidance, etc. from the Data Protection Agency's internal working group on artificial intelligence (AI)

The Data Protection Agency published in October 2023 guidance on public authorities' use of artificial intelligence (AI). The guidance includes a review of the requirements that authorities must be particularly aware of before they begin to develop AI solutions. At the same time, the Data Protection Agency published a mapping of public authorities' use of AI. The mapping provides the clearest insight to date into public authorities' use of AI. Among other things, the mapping shows that the use of AI is not yet widespread among public authorities. To the extent that AI solutions are used in the public sector, they often involve standard solutions or the same specially developed solution used by several authorities.

Fulfilled Holding of 4 webinars/meetings and preparation of The Data Protection Agency has in 2023, in collaboration with the prosecution service, held a workshop on Partially fulfilled

20 Table 4: Achievement of Goals for the Year activities for launch on International Data Protection Day in 2024 regarding the handling of criminal cases in the data protection area. Furthermore, the Data Protection Agency has launched a new guidance universe on GDPR for smaller businesses in collaboration with Dansk Erhverv. In addition, the Data Protection Agency has in 2023 allocated resources to plan a conference on artificial intelligence with external speakers and approximately 250 participants, which was held on Data Protection Day in January 2024.

International Follow-up on Schengen evaluation in Denmark A Schengen evaluation of Denmark was conducted in the autumn of 2022, which included a number of Danish authorities, including the Data Protection Agency. In 2023, a follow-up on the evaluation has taken place. However, the follow-up has been significantly delayed from the EU's side. Only in August 2023 did the Data Protection Agency receive a draft report on the evaluation, to which the Agency provided comments in September 2023. The final report is expected to be published in 2024, and the Data Protection Agency will, in continuation of this, also participate in this part of the follow-up on the Schengen evaluation in Denmark to the extent that the report's recommendations are directed at the Agency.

Fulfilled Continued active participation in EDPB cooperation In 2023, the Data Protection Agency has actively participated in the cooperation within the European Data Protection Board, including in the so-called rapporteur groups, which are responsible for drafting proposals for joint European statements and guidelines, etc. The Data Protection Agency has thus in 2023 participated as a rapporteur in a number of cases, including opinions on the EU Commission's draft adequacy decision regarding the USA, joint European guidelines on research,

public authorities' use of social media, children and artificial intelligence, as well as guidelines for the issuance of fines.
Fulfilled Participation in Nordic working group on children and online gaming At the Nordic meeting in Helsinki in 2022, the Nordic data protection authorities decided, at the initiative of the Data Protection Agency, to establish a working group to address children and online gaming.

Fulfilled

21 Table 4: Achievement of Goals for the Year

The Data Protection Agency has in 2023 – together with the other Nordic supervisory authorities – actively participated in the working group, and it is expected that this work will result in a joint guiding text being adopted at the Nordic meeting in Oslo in 2024. Continued development of the list pursuant to the Enforcement Act § 26

The Data Protection Agency establishes, according to the Enforcement Act § 26, subsection 3, a list of processing activities for which a prior consultation with the supervisory authority must be conducted in connection with impact assessments. Work on this is ongoing throughout 2023 and will be completed in early 2024. Partially fulfilled

Follow-up on the work of the expert group on cloud services

The Data Protection Agency has held two meetings in 2023 in the expert group on cloud services, which contributes input to the agency's considerations and guidance efforts regarding the regulatory requirements applicable to the use of cloud and how these should be complied with. The work, expected to be completed in 2024, is anticipated to result in, among other things, a FAQ addressing the most frequently raised questions regarding the use of cloud, as well as an operational guide with accompanying templates on the use of cloud in accordance with the General Data Protection Regulation. Partially fulfilled

Development and organization

Preparation of a number of new central personnel policies

The Data Protection Agency has continued in 2023 the development of new central policies in the personnel area. However, the work has been delayed due to the handling of several other important matters in the HR area during the year, including a merger of the Cooperation Committee and the Working Environment Committee into a new Cooperation Committee as of January 1, 2024. The preparation of the central personnel policies will continue in 2024. Partially fulfilled

Update of the Data Protection Agency's goal and operational management

The Data Protection Agency introduced goal and operational management in the fall of 2018, and in 2023, the agency planned to update the organization of goal and operational management in the agency's various units, so that it reflects even more the tasks that the agency is currently addressing compared to before. Due to resource-related reasons, the agency has not yet updated its goals. Not fulfilled

22 Table 4: Achievement of Goals and Operational Management.

However, this is expected to occur during 2024.

Possible establishment of an alumni network

The Data Protection Agency has in 2023 been in contact with other governmental authorities that have already established an alumni network to explore what experiences they have had, but also to learn more about the background for the establishment of the network, what it requires in terms of resources, and what the authorities have gained from establishing these networks. Based on this, it has been decided not to establish an alumni network under the auspices of the Data Protection Agency for the time being. Fulfilled

Promotion of awareness of the National Whistleblower Scheme

In 2023, the Data Protection Agency conducted an information campaign to increase awareness of the National Whistleblower Scheme. The agency advertised in three major trade union magazines and

produced a graphic info-video about the scheme, which served as a promotional sequence on the Data Protection Agency's LinkedIn profile. In September, when the campaign was running, the number of views on the National Whistleblower Scheme's website (www.whistleblower.dk) increased by 25%.
Fulfilled

2.4.2

The second part of the goal reporting: In-depth analyses and evaluations

The Data Protection Agency has established 20 specific action points in 2023. 14 of the points have been fulfilled, 5 of the points have been partially fulfilled, and only one of the points has not been fulfilled. Overall, the result is assessed as being very satisfactory, even though there is one single action point that was not fulfilled in 2023. The Data Protection Agency emphasizes in this connection that more than half of the action points have been fulfilled, and the majority of these action points are particularly extensive in their content. The same largely applies to the points that are partially fulfilled.

Supervision and complaint handling, etc.

It is assessed as very satisfactory that the Data Protection Agency in 2023 has fulfilled 6 out of 7 action points under this overarching area, several of which contain many underlying initiatives.

23. As for the last action point under this area, which concerns the continued follow-up on two internal reports with proposals for the efficiency of the Data Protection Authority's supervision and complaint handling, it is noted that when the Data Protection Authority has chosen to assess this point as only partially fulfilled, it is related, as mentioned in the table above, to the fact that the authority in 2023 has continued to focus on working further with particularly one of the two working groups' reports, which deals with the authority's case management more generally. The other report, which specifically addresses the planned supervisory activities, has also been followed up on, but not to such an extent at this time that the Data Protection Authority assesses that the action point can be considered fulfilled.

Advisory and Guidance It is extremely satisfactory that the authority in 2023 has fulfilled 4 very extensive action points under this important area, and that the last action point is partially fulfilled.

International It is satisfactory that the authority in 2023 has fulfilled 3 out of 5 action points in this important area.

Development and Organization It is less satisfactory that the Data Protection Authority in 2023 has fulfilled 2 out of 4 action points under this overarching theme. However, it is positive that one of the two outstanding points is partially fulfilled, meaning that it is only a single action point that the Data Protection Authority has not succeeded in achieving in 2023.

2.4.3 Data Protection Authority's Processing Times

Table 4A: Data Protection Authority's Processing Times

| Year | Average Processing Time | 50% within the individual category | 80% within the individual category |

2022	Complaints	99	34	118	85	36	88	-15%
	Inquiries	31	21	51	38	30	45	24%
	Opinions on legislative proposals, etc.	10	1	16	15	3	21	49%
	Permits, etc.	78	29	56	37	26	54	-53%

24. Note: For further information on the Data Protection Authority's processing times, please refer to the authority's website: . The case group "complaints" had in 2023 an average processing time of only 85 days compared to 99 days in 2022, which means a decrease in the average processing time of 15%. This comes in addition to the fact that there was also a decrease in the average processing time for complaints in 2021-2022. In 2023, 50% of complaint cases were processed within 36 days compared to 34 days in 2022, and 80% of complaint cases were processed within only 88 days in 2022 compared to 118 days in 2022, thus indicating an overall improvement in the processing time for complaints. It is extremely satisfactory that it has been possible for several years in a row to reduce the average processing time for complaints, which can be a complex case type with many procedural

steps. Additionally, the Data Protection Authority receives a large number of complaints each year, and the number of newly registered complaints in 2023 was at the same level as in 2022. The average processing time for "inquiries" was 38 days in 2023, a slight deterioration from 2022 with an average of 31 days, which means an increase in the average processing time of 24% compared to 2022 but at the same level as in 2021. 50% of inquiries were processed in 2023 within 30 days compared to 21 days in 2022, but also at the same level as in 2021. 80% of inquiries were processed in 2023 within 45 days compared to 51 days in 2022, which indicates an improvement in the processing time.

There is an increase in the average processing time for cases concerning "opinions on legislative proposals, etc." from 10 days in 2022 to 15 days in 2023, which is a significant increase of 49%, but approximately the same level as in 2021 and an increase of only 5 days. In 2023, 50% of cases were processed within 3 days compared to only 1 day in 2022, which is a significant increase, but in terms of the number of days, it is approximately the same level, and 80% of cases were processed in 2023 within 21 days compared to 16 days in 2022.

However, the processing time must be viewed in light of the fact that the Data Protection Authority receives a large number of consultations on drafts of legislative proposals and regulations, etc., where there are no circumstances that may be significant for the protection of privacy in connection with the processing of personal data, and where the authority therefore should not have been consulted at all. Additionally, the number of consultations on legislative proposals has increased by one-third compared to last year, according to Table 3A. In 2023, the processing time for "permits, etc." was on average only 37 days compared to 78 days in 2022, which means a significant decrease in the average processing time of 53%, which comes in addition to a larger decrease in the average processing time from 2021-2022. In 2023, 50% of cases were processed within 26 days compared to 29 days in 2022, and 80% of cases were processed within 54 days in 2023 compared to 56 days in 2022. Overall, this indicates a significant improvement.

Overall, the development in processing times at the Data Protection Authority can be described as very satisfactory.

2.5 Expectations for the Coming Year

Table 5: Expectations for the Coming Year

Expectations for the Coming Year Accounts R-year 2023 Basic Budget B-year 2024					
Appropriation (including TB) and other income					
----- ----- ----- ----- ----- -----					
--					
-55.2 -56.5					

25 Expenses 59.3 56.5 Result 4.0 - Note: There may be differences in the table of up to 0.1 million DKK due to rounding in the extraction. In 2024, the Danish Data Protection Agency expects to continue to allocate a significant amount of resources to ensure that the supervision effectively manages the many tasks it undertakes. This particularly applies to the tasks arising from data protection regulations, but also to the relatively new tasks handled by the National Whistleblower Scheme, which has been established under the auspices of the Danish Data Protection Agency. Regarding data protection regulations, the year is generally expected to be characterized by work on larger national case complexes and many tasks of an international nature. The Danish Data Protection Agency continues to receive many complaints and inquiries, and the number of reports of breaches of personal data security remains high. In this context, it is important that the agency both follows up on the reports that necessitate it and manages to translate the knowledge and insights that these reports provide into further guidance, etc. The Danish Data Protection Agency also produces various forms of guidance material each year. This guidance effort will continue in 2024 – both nationally and under the auspices of the European Data Protection Board. In this connection, there will still be a full focus on making the guidance as concrete as possible. The ambition is also – as in previous years – to think holistically and supplement the more classical guidance with other types of guidance materials such as checklists, brochures, posters, infographic overviews, podcasts, and possibly also other forms of audio

and video recordings. However, the backlog of guidance materials that have been published since 2017 has become quite extensive. It is therefore necessary for the Danish Data Protection Agency in 2024 to be attentive not only to producing new guidance materials but also to ensuring necessary updates of the guidance materials that have already been prepared. In this light, the agency will also examine the need for further guidance in 2024. The Danish Data Protection Agency has, with the Finance Act 2024, also obtained the authority to conduct income-covered activities as a natural extension of the agency's general operations. Therefore, in 2024, the Danish Data Protection Agency will begin work on both framing the agency's income-covered activities and developing the educational activities that will constitute the content of the business. The Danish Data Protection Agency will also continue in 2024 to have a strengthened focus on the use of artificial intelligence. This is expected to occur, among other things, through the establishment of a regulatory sandbox for artificial intelligence, where companies and authorities will have the opportunity to receive practice-oriented advice and guidance on the development and use of artificial intelligence solutions. Additionally, the Danish Data Protection Agency will strive to develop further guidance to support responsible work with artificial intelligence, as well as templates and checklists that can support daily work with these new tools. In May 2023, the Danish Data Protection Agency launched a new guidance universe on GDPR for small businesses. The guidance universe has been developed with a focus on clarity and concrete examples, and it is written in plain Danish. In 2024, the Danish Data Protection Agency will prepare a corresponding GDPR universe for the association sector. The Danish Data Protection Agency will also have a general focus in 2024 on following up on, among other things, the updated strategy for a data- and risk-based effort, which has recently been published. Furthermore, the Danish Data Protection Agency will continue its active participation in international work in 2024, including in the so-called rapporteur groups, which are responsible for drafting guidance materials under the auspices of the European Data Protection Board. Since 2019, the Danish Data Protection Agency has been at the forefront of a collaboration with the Director of Public Prosecutions and the National Police, aimed at organizing the overall handling of criminal cases regarding violations of data protection regulations across authorities. This collaboration will continue in 2024 with a focus on further guidance in determining penalty levels, etc.

27 3. Financial Statements 3.1 Accounting Practices Used The Danish Data Protection Agency's accounting practices follow the guidelines in the Ministry of Finance's Economic Administrative Guidance. The State Consolidated Financial Statements (SKS) and Navision have been used as primary sources. 3.2 Income Statement, etc. Table 6: Income Statement

Million DKK, current prices Financial Statement Financial Statement Budget

note: 2022 2023 2024 Ordinary operating income

Recognized grants Grant -54.4 -50.7

-51.9 Used from previously reserved grants - - - Reserved from current year's grants - - - Total recognized grants

-54.4 -50.7 -51.9 External sales of goods and

services - - - Internal state sales of

goods and services - - - Grants for own operations -4.2 -4.4 -4.6 Fees - - - Total ordinary operating income -58.6 -55.1 -56.5

Ordinary operating expenses Change in inventories - -

- Rent 2.4 3.2 2.8 Internal purchases of goods and

services 3.8 4.1 4.3 Total consumption costs 6.2 7.4 7.1 Personnel costs

Salaries 39.0 42.5 40.2 Other

personnel costs - - - Pensions 6.4 6.8 6.7

Salary refunds -1.4 -1.9 -0.3 Total personnel costs 44.0 47.4 46.6 Depreciation and amortization 0.3

0.5 0.5 Other ordinary operating expenses 7.9 3.9

2.2 Total ordinary operating expenses 58.4 59.1

56.4 Result of ordinary operations -0.2 4.0 -0.1

Other operating items Other

operating income - -0.1 -

28 Operating expenses - 0.1 - Result before financial items -0.2 4.0 -0.1
 Financial items Financial income - - -
 Financial expenses 0.1 0.1 0.1 Result before extraordinary items -0.1 4.0 -0.1
 Extraordinary items Extraordinary income - - -
 Extraordinary expenses - - - Result for the year -0.1 4.0 -

The income statement does not give rise to comments.

3.2.1 Explanation of reversed provisions and accruals

The Data Protection Agency has no significant reversed provisions and accruals. This is already explained in a note in table 6.

3.2.2 Allocation of results

Table 7: Allocation of results

Million DKK, current prices Account Account Budget

2022 2023 2024 Allocated to cancellation - - -

Allocated to reserved equity - - -

Allocated dividend to the state - - - Allocated to retained earnings -0.1 4.0 -

3.3 The balance sheet

Table 8: The balance sheet

Assets Beginning End Liabilities Beginning End

note: 2023 2023 note: 2023 2023

Fixed assets:

Equity 1 Intangible fixed assets

Adjusted equity (starting capital) -0.3 -0.3

Completed development projects 0.5 1.1

Revaluations - - Acquired concessions, patents, licenses, etc. - -

Reserved equity - -

Development projects under construction 0.4 - Cancellation of the year's result - -

Intangible fixed assets in total 0.9 1.1 Dividend to the state - -

2 Tangible fixed assets Retained earnings -11.0 -6.9

29 Land, areas, and buildings - - Total equity -11.3 -7.3

Infrastructure - -

Transport equipment - - Provisions - -

Production facilities and machinery - - Inventory and IT equipment 0.2 0.3

Work in progress for own account - - Long-term liabilities

Tangible fixed assets in total 0.2 0.3 FF4

Long-term debt -0.4 -1.5 State borrowing 0.3 0.3

Donations - - Other financial fixed assets - -

Mortgage debt - - Financial fixed assets in total 0.3 0.3

Other long-term debt - - Fixed assets in total 1.4 1.7

Total long-term debt -0.4 -1.5 Current assets:

Inventory - - Short-term liabilities

Receivables 5.0 4.9 Suppliers of goods and services -4.0 -1.5

Accruals 0.2 -0.2 Other short-term debt -0.4 -0.6

Securities - - Accrued holiday pay -0.7 -1.9

Liquid assets Frozen holiday pay - -

FF5 Non-interest-bearing account 12.6 10.8

Reserved grant - - FF7 Financing account -2.4 -4.5

Work in progress for third-party account - - Other liquid assets - -

Accruals - - Total liquid assets 10.1 6.31

Total short-term debt -5.1 -4.0 Total current assets 15.4 11.1

Total debt -5.5 -5.4 Total assets 16.8 12.7

Total liabilities -16.8 -12.7

Note: There may be discrepancies in the table of up to 0.1 million DKK due to rounding in extracts from

SKS.

3.4 Statement of changes in equity

Table 9: Statement of changes in equity

Million DKK, current prices

note: 2022 2023

Equity at the beginning of the R-year -11.2 -11.3

Starting capital at the beginning -0.3 -0.3

+Change in starting capital - -

Starting capital at the end -0.3 -0.3

Revaluations at the beginning - -

+Changes in revaluations - -

Revaluations at the end - -

Reserved equity at the beginning - -

+Change in reserved equity - -

Reserved equity at the end - -

Retained earnings at the beginning -10.9 -11.0

+Primary adjustment/movement between accounting circles - -

30 +Adjustment of retained earnings - -

+Transferred from the year's result -0.1 4.0

- Cancellation of the year's result - -

- Dividend to the state - -

+Transferred from reserved grant - -

Retained earnings at the end -11.0 -6.9

Equity at the end of the R-year -11.3 -7.3

Source: SKS

The Data Protection Agency's equity in 2023 is 4.0 million DKK lower than in 2022.

3.5 Liquidity and borrowing limit

Table 10: Utilization of borrowing limit

Million DKK, current prices 2023

Total of intangible and tangible fixed assets (excluding donations) as of December 31, 2022 1.3

Borrowing limit as of December 31, 2022 2.4

Utilization rate in percent 55.9%

Source: SKS

Note: The Data Protection Agency has activated two new IT projects.

The Data Protection Agency's utilization of the borrowing limit does not give rise to comments.

3.6 Follow-up on wage ceiling

Table 11: Follow-up on wage ceiling

Million DKK, current prices 2023

Wage ceiling FL 45.7

Wage ceiling including TB/act pieces 45.7

Wage consumption under wage ceiling 47.4

Difference -1.7

Accumulated savings at the end of 2022 15.1

Accumulated savings at the end of 2023 13.4

Source: SKS

3.7 Grant accounts

Table 12: Grant accounts

Main account Name

Grant type Million DKK Grant Account Deviation

Continuation End of 11.11.61 Data Protection Agency

Operating grant Expenses 55.1 59.3 -4.2

- Income -4.4 -4.5 0.1 -

4. Appendix to the Annual Report

Note 1: Intangible Assets

Table 13 - Note 1: Intangible Assets

Million DKK

Completed Development Projects

Acquired Concessions, Patents, Licenses, etc.

Total

Opening Balance 3.1 0.2 3.3

Revaluation - - -

Cost Price as of 1.1.2023 (before depreciation) 3.1 0.2 3.3

Additions 0.9 - 0.9

Disposals - - -

Cost Price as of 31.12.2023 (before depreciation) 4.0 0.2 4.2

Accumulated Depreciation -2.9 -0.2 -3.2

Accumulated Impairments 0.0 - -

Accumulated Depreciation and Impairments as of 31.12.2023 -2.9 -0.2 -3.2

Carrying Amount as of 31.12.2023 1.1 - 1.1

Depreciation for the Year -0.3 - -0.3

Impairments for the Year - - -

Depreciation and Impairments for the Year -0.3 - -0.3

Depreciation Period/Year 8 years 3-5 years 3-8 years

Development Projects Under Construction

Opening Balance as of 1.1.2023 0.4 - -

Additions -0.2 - -

Impairments 0.0 - -

Disposals 0.2 - -

Cost Price as of 31.12.2023 0.0 - -

Source: SKS

Note: Two new IT projects have been activated in 2023.

Table 14 - Note 2: Tangible Assets

Million DKK

Land, Areas, and Buildings

Infrastructure

Production Facilities and Machinery

Transport Equipment

Furniture and IT Equipment

Total

Opening Balance - - - - 1.4 1.4

Revaluation - - - - -

Cost Price as of 1.1.2022 (before depreciation) - - - - 1.4 1.4

Additions - - - - 0.2 0.2

Disposals - - - - -

Cost Price as of 31.12.2022 (before depreciation) - - - - 1.6 1.6

Accumulated Depreciation - - - - -1.4 -1.4

Accumulated Impairments - - - - -

Accumulated Depreciation and Impairments as of 31.12.2022 - - - - -1.4 -1.4

Carrying Amount as of 31.12.2022 - - - - 0.3 0.3

Depreciation for the Year - - - - -0.2 -0.2

Impairments for the Year - - - - -

Depreciation and Impairments for the Year - - - - -0.2 -0.2

Depreciation Period/Year 30-50 5-10 5 5 3-8 years -

Table 19B. Appendix 4.

Grant Accounts

Million DKK

Carried Forward Surplus from Previous Years

Grant for the Year 2021 Discretionary Framework

Accounts

Result for the Year

Surplus for Carry Forward at Year-End

Surplus Carried Forward at Beginning of 2023

Grant

Discretionary Framework

EU's Recovery Facility - - - - -

4.4 4.4

The Data Protection Authority's grant has been increased by 4.4 million DKK annually in 2022-2025 as part of the implementation of the Digitalization Fund. The funding comes from Denmark's allocation from the EU's Recovery Facility.

Table 21B IT Costs

Composition

1. Internal Personnel Costs for IT (IT Operations, Maintenance, and Development) 1.8

2. Internal Government Purchase of IT, including from State IT 1.9

3. IT System Operations 0.8

4. IT Maintenance 0.2

5a. IT Development Costs 0.4

5b. IT Development Costs Depreciation and Impairments for Activated IT 0.6

6. Expenses for IT Goods for Consumption 0.0

Total 5.6

Note: The internal personnel costs for IT for 2023 are calculated based on salary expenses for IT employees. For the calculation of other IT costs, the expense registrations on accounting accounts and purchase categories have been used, according to the description in "Specification of Requirements for Financial Reports for Annual Reports 2023."

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